

		The Court GRANTS Plaintiff's request for judicial notice. The FAC does not allege Plaintiff voluntarily consumed alcoholic beverages to the point of intoxication knowing from the outset he must thereafter operate a motor vehicle. (See <i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 899 [citation omitted].) The Court GRANTS Defendant/cross-complainant's Motion to Strike with respect to Plaintiff's request for punitive damages. A determination of whether the specific felonies alleged to have been committed by Defendant may ultimately establish the basis for attorney fees is not appropriate at this stage. The Court DENIES Defendant/cross-complainant's Motion to Strike with respect to paragraphs 16 and 18 and the allegations and prayer regarding attorney fees pursuant to Civil Code section 1021.4. If Plaintiff chooses to amend, Plaintiff is ORDERED to file a red-lined and clean copy of the amended pleading. Clerk to give notice.
7	Vasquez vs. Mercedes-Benz USA, LLC 30-2026-01559886-CU-BC-CJC	Demurrer to Complaint Defendant Mercedes-Benz USA, LLC's Demurrer to the Complaint is OVERRULED. Defendant is ORDERED to file its answer within 5 days. Plaintiff alleges sufficient facts to support her Song Beverly claims. Plaintiff alleges the vehicle was <i>purchased</i> with an "express written warranty." (Compl., ¶ 11.) Thus, Plaintiff has sufficiently alleged facts to support a claim the vehicle qualified as a "new motor vehicle" and the claim does not stem from any warranty provided from the original lease of the vehicle. (See <i>Rodriguez v. FCA US LLC</i> (2024) 17 Cal.5th 189, 205 [vehicle sold with balance left on new car warranty not "new motor vehicle" unless new warranty issued with sale.] Clerk to give notice.
8	Choi vs. Oh 30-2026-01547737-CU-PO-CJC	Demurrer to Complaint Defendants David Byungik Oh and The Happier Church's Demurrer to Plaintiffs Yoon Suk Choi and Jea H. Kim aka Joshua Kim's Complaint is OVERRULED in part and SUSTAINED in part with 10 days leave to amend.

		<u>First cause of action for elder abuse – SUSTAINED</u> The complaint alleges, “[a]t all times herein mentioned, CHOI, has been over seventy years old” (Compl. ¶ 1) and thus sufficiently alleges Choi was an elder pursuant to Welfare & Institutions Code section 15610.27. The statute of limitations for a cause of action for financial abuse of an elder or dependent adult is four years. (Cal. Welf. & Inst. Code, § 15657.7) Plaintiff does not sufficiently allege when the actions alleged to constitute financial abuse occurred for purposes of the statute of limitations. <u>Second cause of action for sexual assault - OVERRULED</u> The statute of limitation for a civil action for sexual assault that occurred when the plaintiff is over 18 years old is 10 years. (Code Civ. Proc., § 340.16, subd. (a)(1).) Plaintiff alleges the sexual assault occurred “while attending the church and serving in the capacity of Music Director” (Compl. ¶ 11), which was alleged to be “about five years ago.” (Compl. ¶ 6.) These allegations sufficiently place the occurrence of the alleged sexual assault within the applicable statute of limitations. <u>Third cause of action for assault and battery - SUSTAINED</u> The statute of limitations for a civil action for assault or battery is two years. (Code Civ. Proc., § 335.1.) Plaintiff alleges the sexual assault occurred “while attending the church and serving in the capacity of Music Director” (Compl. ¶ 11), which was alleged to be “about five years ago.” (Compl. ¶ 6.) This does not sufficiently allege when the actions alleged occurred for purposes of the statute of limitations. <u>Fourth cause of action for defamation-slander – SUSTAINED</u> The statute of limitations for a civil claim for defamation based on slander is one year. (Code Civ. Proc., § 340, subd. (c).) Plaintiffs allege after Choi left the church, Plaintiffs “hired an attorney to help resolve the matter between the parties. However, defendant OH responded by accusing plaintiffs to being extortionists.” (Compl. ¶ 12.) This does
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		not sufficiently allege when the actions alleged occurred for purposes of the statute of limitations. If Plaintiff chooses to amend, Plaintiff is ORDERED to file a red-lined and clean version of the amended pleading. Clerk to give notice. Motion to Strike Portions of Complaint Defendants David Byungik Oh and The Happier Church's Motion to Strike Portions of Plaintiffs' Complaint is GRANTED with 10 days leave to amend. With respect to Plaintiff's second cause of action, Plaintiff does not allege sufficient facts to support a request for punitive damages. (See Compl. ¶ 11.) If Plaintiff chooses to amend, Plaintiff is ORDERED to file a red-lined and clean version of the amended pleading. Clerk to give notice.
9	Buriyev vs. California Unemployment Insurance Appeals Board 30-2026-01533151-CU-WM-CJC	Demurrer to Petition for Writ of Mandate Vacated – first amended petition was filed.
10	Burke vs. City of Newport Beach 30-2024-01436236-CU-PA-CJC	Motion for Summary Judgment and/or Summary Adjudication Defendant City of Newport Beach motion for summary judgment or in the alternative summary adjudication GRANTED. Defendant's request for judicial notice ("RJN") is GRANTED. (Evid. Code, § 452, subd. (d).) Defendant's evidentiary objections (ROA 172) are OVERRULED. The court declines to rule on Plaintiff's objections (ROA 147 & 166) because they are not numbered consecutively. (Cal. Rules of Court, rule 3.1354(b); see <i>Hodjat v. State Farm Mutual Automobile Ins. Co.</i> (2012) 211 Cal.App.4th 1, 9 [court may decline to rule on objections not filed in conformity with formatting rules nor is court required to give party second chance at filing properly formatted objections].) The court also declines to consider objections stated in Plaintiff's responsive separate statement (ROA 131) because they do not refer